Ex Tempore

THE SHERIFF OF ZIMBABWE
versus
YOLANDER CHIPO HLOMBE
and
SIMBA GORDEN NYAMAREZI
and
TAFADZWA SOLOMON KAITANO

HIGH COURT OF ZIMBABWE
DEME J
HARARE; 20 November 2025, 19 February & 24 March 2026

Interpleader Proceedings

E Jojo, for the Applicant
T.C Masara, for the 1st and 2nd Claimants
S Chihombe, for the Judgment Creditor

DEME J: On 19 February 2026, this court handed down judgment in the present matter to the effect that:

> "1. The 1st and 2nd claimants' claim to a certain piece of land situate in the district of Salisbury called stand 18016 Tynwald Township Lot 12 of Tynwald measuring 634 square metre held under deed of transfer number 7890/22 attached by the applicant pursuant to execution of judgment in HCH5875/21 is hereby granted.
> 2. The movable property attached and described in 1st and 2nd claimants' interpleader affidavit be and is hereby declared not executable.
> 3. The judgment creditor shall pay storage costs and all costs associated with the attachment of the property.
> 4. The Judgment Creditor shall pay the Claimants' and applicant's costs of suit on an ordinary scale."

Due to error, paragraph 2 of the order captures "movable property" instead of "immovable property". The error was inherited from the draft order which is part of the record.

Thus, the error is therefore corrected by this judgment. The corrected order must now read as follows:

> "1. The 1st and 2nd claimants' claim to a certain piece of land situate in the district of Salisbury called stand 18016 Tynwald Township Lot 12 of Tynwald measuring 634 square metre held under deed of transfer number 7890/22 attached by the applicant pursuant to execution of judgment in HCH5875/21 is hereby granted.
> 2. The immovable property attached and described in 1st and 2nd claimants' interpleader affidavit be and is hereby declared not executable.
> 3. The judgment creditor shall pay storage costs and all costs associated with the attachment of the property.
> 4. The Judgment Creditor shall pay the Claimants' and applicant's costs of suit on an ordinary scale."

I will now proceed to outline the reasons for the order that was handed down on 19 February 2026.

The present proceedings were instituted by way of interpleader proceedings in terms of rule 63 of the High Court Rules, 2021. The judgment creditor obtained an order from the High Court in case number HCH5875/21 against Evidence Shepherd Murambiwa and Hayes Construction (Private) Limited. Pursuant to this order, the judgment creditor instructed the applicant to attach certain immovable property. The claimants laid claim to the attached property, necessitating the institution of the present proceedings.

On the first day of the hearing, claimants' counsel made an application for leave to file a supporting affidavit in response to the judgment creditor's averments in the Opposing Affidavit. Counsel made the application under Rule 7. Counsel submitted that Rule 63 does not provide for the filing of an answering affidavit. Counsel further relied on the case of *RioZim Ltd* v *African Export-Import Bank* HH31-14, which is an authority for the proposition that Rule 7 is resorted to in the interests of justice. I queried Mr. Masara on why he chose to rely on Rule 7 rather than Rule 59, to which he replied that although Rule 59 applies, no provision in Rule 63 allows the filing of further pleadings. He additionally submitted that Rule 59(25) is different, as it provides for leave to file further pleadings after the answering affidavit. Counsel submitted that he wishes to file a further affidavit and supplementary evidence. Mr. Masara insisted that this application was prompted by the judgment creditor's assertion that the claimants had dragged their feet in having the disputed property in their name. The claimants had not been able to respond to this

issue due to the limitation of the rules. Mr. Masara, therefore, contended that justice would be affected if the application were dismissed. He argued that the filing of the supplementary affidavit would not prejudice the judgment creditor, as it is simply a response to the issue raised in the judgment creditor's opposing affidavit.

The judgment creditor opposed the application on the basis that, before this application, the claimants were privy to this information that they now seek to introduce as further evidence. Counsel submitted that the claimants seem to be building their case as they go, which is intended to delay the inevitable, assuming their application is dismissed. Ms. Chihombe submitted that rule 63(14) speaks of the strict compliance with the filing of documents. Counsel further submitted that the claimants had time to file this application rather than wait until the hearing day. Counsel thus prayed for the dismissal of the application and that the matter be heard on the merits. I queried the judgment creditor's counsel on whether its opposition to the application brings finality to litigation since the issues raised are of a factual nature. Ms. Chihombe responded by stating that allowing the claimants to file further evidence will not bring finality to litigation either.

In reply, Mr. Masara denied that the claimants are making their case as they go; he submitted that they simply ask for a chance to respond to the issues raised. He maintained that the claimants have proceeded in terms of the rules, and this application was the appropriate one to bring before this court. He further submitted that the opposition would be a violation of the *audi alteram partem* rule.

Mr. Masara suggested that the present matter be removed from the roll pending the filing and finalisation of the application for leave to file supplementary evidence. This suggestion was agreed upon by the judgment creditor's counsel, who submitted that this was appropriate in the circumstances so that the claimants put their house in order. Judgment creditor's counsel submitted that wasted costs for the day should be borne by the claimants. This proposition was opposed by claimants' counsel, who submitted that he does not believe that claimants should be visited with costs for invoking rule 7, as there was no other avenue to explore. He therefore submitted that costs should be in the cause.

In my ruling, I determined that the claimants should be allowed to file their application for leave to file a supplementary affidavit. The matter was accordingly removed from the roll

pending the finalisation of the application for leave to file further papers. I also made an order that costs were to be in the cause.

On the return date, Mr. Masara submitted that the claimants filed their application for leave to file additional evidence in December 2025, which application was granted on 16 January 2026. As a consequence, the supplementary affidavit was then filed and made a part of the record.

Mr. Masara submitted that the judgment creditor is laboring under some misconceptions regarding the fact that the claimants have failed to prove ownership. He submitted that it is common cause that the property is registered in the name of the judgment debtor. He asserted that the principle guiding this application is the authority of the Supreme Court case of *CBZ Bank Limited v Moyo & Anor* SC17-18, which determined that a court will consider the existence of special circumstances when considering the upliftment of attachment where a property is still registered in a judgment debtor's name. Mr. Masara submitted that such special circumstances exist *in casu*. He submitted that a title deed is not conclusive proof of ownership; he relied on the case of *CBZ v Moyo supra,* wherein it was ruled that a title deed merely establishes a *prima facie* right and not a real or absolute right.

Mr. Masara claimed that there are special circumstances that exist in the present matter. These were outlined as follows:

1. The claimants bought the property before the dispute of 2021 between the judgment debtor and the judgment creditor arose.
2. The property in question was vacant and underdeveloped when the claimants bought it. This was pleaded on page 58 of the record.
3. The claimants fully paid the purchase price upon signing the agreement of sale as witnessed by Annexure C to the claimants' opposing affidavit on page 62.
4. The claimants have developed the property into a five-bedroom house as evidenced by the pictorial evidence attached from pages 66-68.
5. The claimants paid the conveyancing fees for the transfer of the property into their names.

6. The claimants have been in occupation of the disputed property since 2020, when they bought it from the judgment debtor, and even once vindicated their rights against an intruder.
7. The sale of the property between the judgment debtor and the claimants was a sale in execution sanctioned by this court in HCH5182/15

Mr. Masara submitted that the situation herein is a rare one where execution of judgment in one matter stands in the way of execution in another, as to allow execution in HCH5875/21 will mean that HCH5182/15 cannot be executed. He further submitted that allowing the execution in HCH5875/21 would amount to giving with one hand and taking with another, and would boil down to this court giving conflicting orders. He submitted that the existence of the seven special circumstances warrants the setting aside of the attachment in HCH5875/21.

Counsel submitted that the only issue raised against the application by the judgment creditor is the delay of five years in having the property transferred into the claimants' names. It was submitted that this was not due to any fault of the claimants because:

1. At the time of purchase title was not yet transferable, and the place was still underdeveloped.
2. A certificate of compliance had not yet been issued; it was only issued in May 2022 by the city of Harare. Transfer could thus only be made after issuance of the certificate of compliance. Reference was made to paragraph 7b of Annexure N.

Mr. Masara submitted that for half of the five years up to May 2022, the property was not yet transferable, and that when it became transferable, the claimants paid the transfer fees to the conveyancers to facilitate the transfer from the judgment debtor. It was further submitted that the claimants made follow-ups regarding transfer, the last one being just before attachment occurred. Reference was made to page 119, where there is an email referring to the same. Mr. Masara contended that this proves that reasonable steps to have the transfer effected were taken; therefore, an assertion stating otherwise is baseless, as the claimants did all they possibly could. He further contended that the agreement of sale is silent on when the claimants were supposed to take ownership of the property. Mr. Masara relied on the case of CBZ v Moyo *supra* on page 19,

where the court held that it would be unjust to punish the claimants who bought the property in good faith at a time when the property did not belong to anyone.

Mr. Masara additionally maintained that the transfer of the property was to follow sequence of the transferees of the property. He submitted that the property had to be transferred to the judgment debtor first before being transferred into the Claimants' names. Reference was made to Section 11 of the Deeds Registries Act [*Chapter 20:05*]. Counsel therefore prayed that the main relief sought be granted.

The application was opposed by the judgment creditor. Ms. Chihombe submitted that what is to be considered is the issue of ownership as well as the existing special circumstances. She asserted that ownership is not in dispute as the property is currently registered in the name of the judgment debtor. She claimed that, in light of this admission, the claimants do not own the property which means that they have no real rights over the property. She contended that the judgment creditor is therefore at liberty to execute against the property to satisfy the debt owed to him. Counsel did not dispute that the claimants bought the property in 2020 but maintained that the claimants did not take reasonable steps to have the property transferred into their names; they simply paid for conveyancing fees and then did nothing after that. It was argued that the claimants last made a follow-up in January 2024, and no explanation was given as to why the transfer was not facilitated. Counsel submitted that it was incumbent upon the claimants to seek clarification as to why the transfer was not effected.

Ms. Chihombe further submitted that the claimants had remedies at their disposal, such as:

1. Getting a compelling order to facilitate transfer.
2. Engaging the conveyancers;
3. Appointing new conveyancers; and
4. Approaching the Law Society with a complaint against the conveyancers.

She contended that the claimants were not self-actors, their legal practitioners could have filed legal proceedings to compel the conveyancers to act. Their inaction, according to her, meant that the claimants sat on their laurels and did nothing to obtain what was theirs. She therefore maintained that nothing stops the judgment creditor from proceeding with execution, as

the law does not protect the sluggard. She therefore prayed that the claim be dismissed and the attached property be declared executable.

I queried counsel on whether the judgment creditor denies that at the time of sale in 2020, the property was a vacant piece of land, to which she responded that this is not denied. She further argued that the judgment creditor also does not deny that there is now a five-bedroom house on the property, although she asserted that the judgment creditor is not certain of who erected the said house. Ms Chihombe insisted that the property is owned by the judgment debtor. I further queried counsel on whether the court can ignore these improvements, to which she responded that ownership cannot be separated from this issue and that the claimants should have ensured that the transfer was effected so as to protect their interests. I enquired from counsel whether the existence of these huge improvements on the property could not be taken as special circumstances, to which she responded in the negative. She maintained that, since the claimants were constructing on the property, thinking they owned the land, there was some relaxation in terms of obtaining title, as they did nothing to ensure that the conveyancers acted. I queried counsel on whether the sequence of transfer was also challenged by the judgment creditor, to which she conceded that it was not challenged. Ms Chihombe argued that when the certificate of compliance was finally issued, no efforts were made for the transfer of the property into Claimants' names. Counsel submitted that it is not clear when the judgment debtor obtained transfer into his own name, although it is said that the transfer was made in 2022 into the judgment debtor's name, and since then, there has been no transfer of the property to the claimants.

In reply, Mr. Masara contended that the issue of ownership does not arise, nor does the issue of real rights. He submitted that the suggestion raised over the bar that the claimants ought to have approached the courts can only be invoked as a last resort. He maintained that there is no clause in the agreement of sale that the claimants could have invoked to approach the court to enforce the agreement of sale. Regarding the assertion that the claimants did not explain why they failed to facilitate transfer, Mr. Masara maintained that purchasers do not facilitate transfer; that is the purview of the conveyancers. On the assertion that the claimants should have reported the conveyancers to the Law Society, Mr. Masara queried what misconduct would be reported. He maintained that the agreement of sale is silent on the timeframes for transfer of the property.

Counsel asserted that the claimants have been in occupation of the disputed property for six years and have made significant improvements, and that this indeed constitutes special circumstances even without considering the issue of transfer.

The question that exercised my mind is whether or not there are special circumstances warranting the upliftment of attachment. The judgment creditor alleged that there are none. After having gone through the record, the following facts are common cause:

1. The property was purchased by the claimants in 2020.
2. The property was vacant at the time of purchase.
3. Claimants built a five-bedroom house.
4. The dwelling was built according to a plan approved by the City of Harare.
5. Claimants paid for the plan.
6. Property transfer had to follow a certain sequence, which was not disputed by the judgment creditor.
7. The certificate of compliance was issued on 16 May 2022.
8. The deed of transfer in favour of the judgment debtor is dated 15 December 2022 while the Judgment Creditor obtained judgment in his favour on 20 December 2022.
9. The property is still registered in the name of the judgment debtor.

In my view, the claimants have established special circumstances on the basis of vast improvements effected at the property which were not strongly resisted by the Judgment Creditor. An order declaring such property executable under such circumstances would promote irreparable prejudice to the claimants. The pictorial evidence adduced in court shows the massive improvements made that the court can not simply ignore. In the case of *CBZ v Moyo supra*, the Supreme Court held that:

> "Special circumstances exist where a purchaser has failed to have the property registered in his name, when he and the seller have demonstrated a clear intention to effect transfer, and when there was no legal impediment to such transfer, or the impediment does not justify the refusal to grant protection to the purchaser.
>
> The first respondent purchased and paid the full purchase price for the property in August 2010. It is common cause that the first respondent acted promptly to secure registration of title by paying the transfer fees and obtaining tax and rates clearance certificates. It is further common cause that the first respondent, in terms of the contract of sale, was entitled to take vacant possession 3 months after the date of payment of the purchase price, that is, from November 2010. When the

> appellant served a summons against Nompiliso Maposa, the first respondent was already residing at the property in question, where service of the summons was effected.
>
> The transfer could not be registered because Lizhibowa Real Estate (Pvt) Ltd, a creditor of one of the sellers, had registered a caveat on the title deeds of the property. The caveat was registered after the first respondent was already in possession of the property and a day before the first respondent's transfer papers were filed in the Deeds Registry. The first respondent had done all that a purchaser is required to do to get a transfer."

In casu the claimants have demonstrated an intention to have the property transferred into their name. The delay was in part due to section 11 of the Deeds Registries Act [Chapter 20:05], which reads as follows:

> "Deeds to follow the sequence of their relative causes
>
> (1) Save as otherwise provided in this Act or as directed by the court—
>
> (a) transfers of land and cessions of real rights therein shall follow the sequence of the successive transactions in pursuance of which they are made, and if made in pursuance of testamentary disposition or intestate succession, they shall follow the sequence in which the right to ownership or other real right in the land accrued to the persons successively becoming vested with such right."

Therefore, due to no fault of their own, for the first two years of purchase, the claimants could not have transfer effected as the judgment debtor had no ownership transferred into his name. After the judgment debtor had the transfer effected into his name, the claimants then paid the transfer fees to the conveyancers. There is an email attached by the claimants proving that they did make follow-ups regarding the issue of transfer. It cannot, therefore, be said that the claimants were sluggish in their attempts to have the transfer effected.

Regarding the solutions that the judgment creditor's counsel suggested, a compelling order would not have been available to the claimants on the basis that the agreement of sale is silent on when the transfer was to be effected. The payment of the full purchase price is not disputed by the judgment creditor; the improvements cannot be overlooked. To allow execution would promote unjust enrichment of the judgment debtor at the expense of the claimants. The Claimants will be left without a remedy. This court retains discretion to control the manner in which execution of its judgments may be exercised guided by the need to advance real and

substantial justice. Execution of judgment is the process of the court which remains under the watch of the court. In the case of Mupini v Makoni 1993 (1) ZLR 80 (S), the court stated:

> "Execution is a process of the court, and the court has an inherent power to control its own process and procedures, subject to such rules as are in force. In the exercise of a wide discretion, the court may, therefore, set aside or suspend a writ of execution or, for that matter, cancel the grant of a provisional stay. It will act where real and substantial justice so demands. The onus rests on the party seeking a stay to satisfy the court that special circumstances exist. The general rule is that a party who has obtained an order against another is entitled to execute upon it."

I was convinced that there are special circumstances which may require this court to protect the Claimants. In the circumstances, I ruled that the claimants were entitled to the main relief sought with costs on an ordinary scale, as there was no justification for the punitive costs that were prayed for. After taking into account the correction made before, the corrected must now read that:

Dube-Banda Nzarayapenga & Partners, applicant's legal practitioners
Masara Savanhu Attorneys, claimants' legal practitioners
Rubaya-Chinuwo Law Chambers, judgment creditor's legal practitioners